

No.U6-30380/2002
POLICE HEADQUARTERS,
KERALA, THIRUVANANTHAPURAM.
DATED 28...11...2002.

CONDITIONS FOR ISSUE OF LOUDSPEAKER LICENCE

NOTIFICATION

Whereas in view of the issuance of the Noise Pollution (Regulation and Control) Rules, 2000 under the Environment (Protection) Act, 1986 by the Government of India and in accordance with the regulatory functions under sections 19 and 20 of the Kerala Police Act, 1960, it has become necessary to revise the conditions for granting licences for use of loudspeakers, in exercise of the powers conferred under section 16 of the Kerala Police Act, the following regulations regarding grant of licences for use of loudspeakers are issued.

1. The competent authority in the Police Department for issue of licence for use of loudspeaker will be the Sub Divisional Police Officer or the Superintendent of Police / Commissioner of Police having local jurisdiction.
2. Application for licence will be submitted to the competent authority, 7 days in advance.
3. Fees as prescribed by the Govt from time to time will be levied from the applicants.
4. The application for use of loudspeaker should be specific with regard to the date, place, time and purpose for which it has been sought.
5. License will be issued in the form prescribed for the purpose mentioning various conditions attached General permit will not be issued as it amounts to violation of the provisions of Noise Pollution (Regulation and Control) Rules 2000.

വിവരങ്ങൾ നിയമം, 2005 പ്രകാരം
സാക്ഷ്യപ്പെടുത്തിയ പകർപ്പ്

സംസ്ഥാന ഹെൽത്ത് വിവരങ്ങൾ അധികാരി
പോലീസ് ആസ്ഥാനം, കേരളം.
ശാസ്ത്രമംഗലം പോസ്റ്റ്, തിരുവനന്തപുരം
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6. Use of loudspeaker between 10 PM and 6 AM is prohibited except in closed premises like auditoria, conference rooms, community halls and banquet halls for communication within as defined in Rule 5 of the Noise Pollution (Regulation and Control) Rules.
7. Licence for use of loudspeakers will be issued taking into account the zone as notified by the Government of Kerala vide SRO No. 289/2002 and the permissible ambient air quality standards prescribed for each zone as follows:

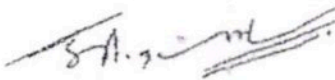
Area Code	Category of Area / Zone	Level of sound in decibels	
		Day Time	Night Time
(A)	Industrial Area	75	70
(B)	Commercial Area	65	55
(C)	Residential Area	55	45

8. No licence shall be issued for use of loudspeakers within the silence zone (area comprising 100 metres around hospitals, educational institutions, courts, religious places, reserve forests and wildlife sanctuaries).
9. No licence shall be issued for use of loudspeakers within 100 metres around public offices.
10. Use of loudspeaker on a vehicle in motion is prohibited.
11. No loudspeaker will be allowed to be used on public roads or near busy junctions which is likely to cause public nuisance and hindrance to the smooth flow of traffic.
12. Loudspeakers will not be installed beyond 300 metres from the location of the mike and amplifier.
13. Licence will be issued only for box type loudspeakers, each box containing not more than two speakers.
14. The number of such boxes which can be fitted to a vehicle will be limited to two.

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സാക്ഷ്യപ്പെടുത്തിയ പകർപ്പ്

സംസ്ഥാന പൊതു വിവരാവകാശ അധികാരി
പോലീസ് ആസ്ഥാനം, കേരളം.
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15. Licences for use of loudspeakers in other than vehicles shall specify the number of boxes allowed to be installed.
16. (a) Licencee shall stop the operation of loudspeaker at the direction of a police officer not below the rank of a Sub Inspector of Police, on grounds of public nuisance or in the interest of maintenance of law and order.
- (b) A licensee violating the conditions of the licence, and / or failing to comply with the direction of a police officer not below the rank of SI of Police shall be dealt with under the provisions of KP Act, 1960.
- (c) The competent authority (SDPO / SP / CP) may, where necessary, take steps to prosecute the violators as provided in section 15 of the Environment (Protection) Act, 1986 (which provides for a penalty of imprisonment upto five years or with maximum fine of Rupees One lakh or with both).


K J JOSEPH
Director General of Police.

കാശ നിയമം, 2005 പ്രകാരം
വിവരങ്ങൾ
സംസ്ഥാന പരിസ്ഥിതി
സംരക്ഷണ വകുപ്പ്


സംസ്ഥാന പൊതു വിതരണ കമ്മീഷൻ
പോലീസ് ആസ്ഥാനം കേരളം.
ശാസ്ത്രമംഗലം പോസ്റ്റ്, തിരുവനന്തപുരം
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CIRCULAR NO. 17/2002

Ref: - 1. PHQ Circular Nos. 26/1974, 7/1980 and 28/1995.

In the light of the Act and Rules and in accordance with the regulatory functions under the Kerala Police Act 1960, a Notification dated 28-11-2002 has been issued by the Director General of Police prescribing regulations regarding grant of licences for use of loud speakers. (Annexure-1). A specimen of the form prescribed vide item 5 of the Notification is given in Annexure -2.

1. The Competent authority for issue of the licence is prescribed as either the SDPO or SP/CP. Since the competent Officer is required to have adequate knowledge of the classification of Zones and the permitted level of sound (in decibels), applications for licence will not be entertained by Range DIGs, Zonal IGP's and PHQs.

2. The sanctioning authority shall ensure that all the particulars required in Column 1 to 4 are furnished in the prescribed form, while issuing the licence.

3. No licence shall be granted to an applicant for use of loud speakers for more than 10 days under one application.

4. It will be the personal responsibility of the competent authority to ensure that the licence is issued strictly in accordance with the conditions laid

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പോലീസ് ആസ്ഥാനം, കേരളം.

ശാസ്ത്രമംഗലം പോസ്റ്റ്, തിരുവനന്തപുരം

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down in the Notification.

5. Before the grant of licence the competent authority should be aware of the classification of the various zones in his jurisdiction and the level of the sound (in decibels) allowed in each zone.

It is clarified that with the issuance of this Notification, the restrictions ordered by the Hon'ble High Court of Kerala in WA No. 3125 of 2001 are no more operative.

It is expected that with proper application of mind by SDPOs/SPs/CPs, the provisions of the Notification will be enforced effectively and the objectives of the Environment (Protection) Act 1960 and the Noise Pollution (Regulation and Control) Rules 2000 achieved.

K.J. JOSEPH
DIRECTOR GENERAL OF POLICE.

To

All List 'B' Officers & All SDPOs.
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സംസ്ഥാന പൊതു വിവരസമ്പ്രദായ സെക്ഷൻ
പോലീസ് ആസ്ഥാനം, കേരളം.
ശാസ്തമംഗലം പോസ്റ്റ്, തിരുവനന്തപുരം
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35/2004

No.1/CAMP/DGP/2004
POLICE HEADQUARTERS
THIRUV ANANTHAPURAM
DATED: 21/12/2004

EXECUTIVE DIRECTIVE No. 25/2004

Sub:- Loud speakers and public address system - restriction in use-instructions - issued

Ref:- PHQ Circular No.17 /2002.

Please refer to the Circular cited. Instructions were issued regarding the licensing of loud speakers and public address system in the Circular.

This is the festival season. The office bearers of the religious institutions and individuals perform religious functions all over the State. In these functions loud speaker's and public address systems are used indiscriminately without restricting the time and type of instruments as laid down in the statutes. This causes a lot of inconvenience to the public especially the sick and infirm by way of noise pollution. This is also the time of examination. The students preparing for their examinations both State and all India level are seriously affected by sound pollution. A number of complaints have been received in this matter. Therefore, the following instructions are issued.

1. Notice will be given to all the religious institutions that loud speakers and public address systems shall not be used between 22.00 hrs to 06.00 hrs except in closed premises.
2. It shall be ensured that loud speakers and public address systems are used only with the permission of the concerned authority.
3. It shall also be ensured that a silent zone of 100 meters is kept around hospitals, educational institutions and Courts,

P.K.H. THARAKAN IPS
Director General of Police

To
All SPs/CPs of Districts
Range DIGs/Zonal IGP/ ADGP (Tnt)/ ADGP (Ops)
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സംസ്ഥാന പൊതു വിവരവാക്യം അധികാരം
പോലീസ് ആസ്ഥാനം, കേരളം
ശാസ്ത്രമംഗലം പോസ്റ്റ്, തിരുവനന്തപുരം



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No. 1/CAMP/DGP/2005
POLICE HEADQUARTERS,
THIRUVANANTHAPURAM
DATED: 03-01-2005

EXECUTIVE DIRECTIVE No. 02/2005

Sub:- Loud speakers and public address system -restriction in use-instructions - issued

Ref:- PHQ Circular No.17 /2002.

Please refer to the circular cited. Instructions were issued regarding the licensing of loud speakers and public address system in the Circular.

This is the festival season. The office bearers of the religious institutions and individuals perform religious functions all over the State. In these functions loud speakers and public address systems are used indiscriminately without restricting the time and type of instruments as laid down in the statutes. This causes a lot of inconvenience to the public especially the sick and infirm by way of noise pollution. This is also the time of examinations. The students preparing for their examinations both State and all India level are seriously affected by sound pollution. A number of complaints have been received in this matter.

Hence, a notice will be given to all the religious institutions enclosing a copy of the PHQ notification dated 28-11-2002 (copy enclosed) and an extract of Sec. 15 of the Environment (Protection) Act, 1986, highlighting the fact that violation of these instructions shall entail imprisonment which may extend to five years and a fine of Rs. 1 lakh.

Compliance shall be reported by 31st January 2005.

P.K.H. THARAKAN IPS
Director General of Police

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Range DIGs/Zonal IGP/ ADGP (Tnt)/ ADGP (Ops)
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